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CONTRACT AMENDMENT

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Amendment No. 2 – Pellham Manufacturing plc MSA

Contract reference : CR-2026-023
Document type : Amendment No. 2
Status : signed
Date received : 2026-03-30
Date signed : 2026-04-02
Related contracts : CR-2025-005, CR-2025-016, CR-2026-006

PARTIES

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- (1) Northgate Systems Ltd
 - (2) Pellham Manufacturing plc
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RECITALS

(A) Mid-term amendment adding SSO module and 30 additional seats to Enterprise subscription.

(B) The commercial particulars are summarised below and, together with the standard terms and any negotiated amendments, form the whole agreement.

NOW IT IS AGREED as follows:

SUMMARY OF TERMS

Short-form amendment: pricing table replacement, all other MSA terms unchanged.

TERMS AND CONDITIONS

1. BACKGROUND AND PRINCIPAL AGREEMENT

This Amendment varies the agreement identified in the Summary of Terms (the "Principal Agreement") between the parties. Capitalised terms not defined here have the meaning given in the Principal Agreement.

2. EFFECT OF AMENDMENT

With effect from the date of this Amendment, the Principal Agreement is varied only as set out in the Summary of Terms and the Schedule of Negotiated Amendments. Except as expressly varied, all terms of the Principal Agreement continue in full force and effect.

effect and are ratified and confirmed.

3. COMMERCIAL VARIATIONS

The variations are limited to the commercial terms described in the Summary of Terms (for example pricing, seat count, tier or module changes). Where a replacement pricing table is agreed, it supersedes the corresponding table in the Principal Agreement from the effective date.

4. SCOPE DISCIPLINE

In accordance with Playbook §9.2 (Amendment Scope Discipline), this Amendment is limited to its stated scope. Any request to reopen liability, indemnity, service levels or other non-commercial clauses is deferred to renewal or to a separate negotiated instrument and is not effected by this Amendment.

5. NO OTHER CHANGES

This Amendment does not create any new course of dealing and is not evidence of any agreement to make further amendments. The order of precedence in the Principal Agreement continues to apply, with this Amendment taking precedence over the provisions it expressly varies.

6. COUNTERPARTS AND GOVERNING LAW

This Amendment may be executed in counterparts, each of which is an original and which together constitute one instrument, and is governed by the law of the Principal Agreement.

GENERAL PROVISIONS

A. INTERPRETATION

Clause headings do not affect interpretation. References to a statute or statutory provision are to it as amended, extended or re-enacted from time to time and include subordinate legislation made under it. Words in the singular include the plural and vice versa, and "including" and "in particular" are illustrative and do not limit the words that precede them.

B. ENTIRE AGREEMENT

This agreement, together with the documents it incorporates and the Schedule of Negotiated Amendments, constitutes the entire agreement between the parties on its subject matter and supersedes all prior drafts, arrangements and understandings, whether written or oral. Each party acknowledges that it has not relied on any

statement or representation not expressly set out in this agreement, save that nothing limits liability for fraud or fraudulent misrepresentation.

C. VARIATION AND WAIVER

No variation of this agreement is effective unless it is in writing and signed by an authorised representative of each party. No failure or delay by a party to exercise any right or remedy is a waiver of that or any other right or remedy, and no single or partial exercise prevents any further exercise.

D. ASSIGNMENT

Neither party may assign, transfer, charge, sub-contract or deal in any other manner with any of its rights or obligations under this agreement without the prior written consent of the other (such consent not to be unreasonably withheld or delayed), save that either party may assign to an affiliate or to a successor in connection with a bona fide reorganisation or sale of the relevant business.

E. SEVERANCE

If any provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable; if such modification is not possible, the relevant provision is deemed deleted. Any modification to or deletion of a provision does not affect the validity and enforceability of the rest of this agreement.

F. NOTICES

Any notice given under this agreement shall be in writing, addressed to the relevant party at its registered office or principal place of business (or such other address as notified), and delivered by hand, pre-paid first-class post or email to the address notified for that purpose. A notice is deemed received: if delivered by hand, on signature; if by post, at 9.00am on the second business day after posting; and if by email, on transmission, subject to confirmation of delivery.

G. FORCE MAJEURE

Neither party is in breach of this agreement or otherwise liable for any failure or delay in performance (other than a payment obligation) caused by an event beyond its reasonable control. The affected party shall notify the other and use reasonable endeavours to mitigate the effect. If the event continues for more than sixty (60) days, either party may terminate on written notice.

H. THIRD PARTY RIGHTS

Except as expressly stated in this agreement, a person who is not a party has no

right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement, and the consent of any third party is not required to vary or rescind it.

I. DISPUTE RESOLUTION AND ESCALATION

The parties shall attempt in good faith to resolve any dispute by escalation to their respective senior representatives within fourteen (14) days of written notice of the dispute. If the dispute is not resolved within a further thirty (30) days, either party may pursue its rights and remedies, without prejudice to either party's right to seek urgent injunctive relief at any time.

J. COUNTERPARTS AND ELECTRONIC SIGNATURE

This agreement may be executed in any number of counterparts, each of which when executed constitutes an original and all of which together constitute one and the same instrument. Execution by electronic signature is valid and binding.

SCHEDULE OF NEGOTIATED AMENDMENTS (TRACKED CHANGES)

This Schedule records each redline agreed against the standard form above, the counterparty position it replaced, and the policy or legislation relied on. It forms part of this agreement and prevails over the standard wording it varies.

AMENDMENT 1 [2026-04-01] - AMENDED
Clause affected: Limitation of Liability
(-) Counterparty position / prior wording, struck:
- Customer attempted to reopen liability clause
(+) Agreed substituted wording:
+ refused; amendment limited to commercial terms
Governing basis: Playbook §9.2

EXECUTION

Executed by the parties on the dates set out below. This agreement may be signed in counterpart and by electronic signature.

Signed for and on behalf of Northgate Systems Ltd:

Signature: _____
Name: _____
Title: _____
Date: 2026-04-02

Signed for and on behalf of Pellham Manufacturing plc:

Signature: _____

Name: _____
Title: _____
Date: 2026-04-02

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SIMULATED PLACEHOLDER CONTRACT – Northgate Systems Ltd corpus.

Generated from the contract register; not a real legal document.

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